

10.6 Cases where repayment or remission cannot be allowed

Repayment or remission is not allowed where the only grounds relied upon for repayment or remission are:

- Re-export/destruction for reasons other than those set out in this manual, and
- Presentation of documents, for the purpose of obtaining preferential tariff treatment for goods declared for free circulation, which are subsequently found to be forged, falsified or not valid for that purpose, even where such documents were presented in good faith.

Repayment or remission is also not allowed where:

- The application is submitted outside the prescribed time-limit as laid down in UCC, or
- The amount to be repaid or remitted is less than €10 except where the applicant requests the repayment or remission of a lower amount.

10.7 Extension of time limit for making an application for repayment and remission.

The period can only be extended where the applicant provides evidence that s/he was prevented from submitting an application within the prescribed time limit as a result of unforeseeable circumstances or force majeure (Article 121 (1) 2nd par. UCC).

However, it must be noted that where an appeal has been lodged against the notification of a customs debt, the period for submitting an application is suspended from the date on which the appeal is lodged, for the duration of the appeal proceedings.

10.8 Application procedure for repayment or remission

10.8.1 Applicant

Applications for repayment or remission must be submitted by the declarant who submitted the original declaration in AIS. The declaration must be amended/invalidated prior to making the claim. AIS will contain all the data requirements and it will be compulsory to have all data elements completed. AIS will automatically reject the application where all data requirements are not fulfilled and send a rejection message to the trader.

The application may also be lodged by a customs representative of the applicant (Article 18 UCC).

The customs authorities may require a customs representative to provide evidence of their empowerment by the person represented (Article 19 (2) UCC).